

TENTATIVE RULING FOR CIVSB2608426
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Neuman v. Lifson, et al

Motion: Change Venue

Movant: Allen H. Lifson (Lifson/Defendant)

Respondent: James Walter Neuman (Neuman/Plaintiff)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On March 17, 2026, Plaintiff filed a verified complaint for quiet title against Defendant. The property in dispute is located at 1078 Ridgeview Lane, in Wrightwood, California. (Wrightwood Property). Now before the Court is Defendant's motion for change of venue under California Code of Civil Procedure¹ section 397, subdivision (c). Plaintiff opposes. There is a motion to consolidate this matter with the related matter, *Neuman v. Lifson, et al.*, CIVSB2608431, set for September 17, 2026. There is also a similar motion to change venue is set for hearing on October 8, 2026 in CIVSB26608431.

ANALYSIS

As relevant to the case at hand, the court may, on motion, change the place of trial when the convenience of witnesses and the ends of justice would be promoted by the change. (Code Civ. Proc., §397, subd. (c).) A moving party under section 397, subdivision (c), must demonstrate the transfer will promote both the convenience of witnesses and the ends of justice. (*Rycz v. Super. Ct.* (2022) 81 Cal.App.5th 824, 836 (*Rycz*).) Generally, the convenience of the parties is not to be considered upon a motion for venue change. (*Id.*, at p. 836.) Proposed witness testimony must be shown to be admissible, relevant, and material to some issue in the case as shown by the record before the court. (*Ibid.*) Declarations supporting the motion should set forth the witness names, nature of expected testimony, and reasons why attendance would be inconvenient. (*Ibid.*) The convenience of witnesses whose testimony will be cumulative is entitled to little consideration. (*Ibid.*) Witness convenience is shown by the fact that the residence of all witnesses is in the county

¹ All further code references are to the Code of Civil Procedure unless stated otherwise.

to where the transfer is requested. (*Rycz, supra*, 81 Cal.App.5th at p. 837.) “A conclusion that the ends of justice are promoted can be drawn from the fact that by moving the trial closer to the residence of the witnesses, delay and expense in court proceedings are avoided and savings in the witnesses’ time and expenses are effected.” (*Ibid.*, quoting *Pearson v. Super. Ct.* (1962) 199 Cal.App.2d 69, 77 (*Pearson*).)

Where there is a showing that witness convenience and the ends of justice will be promoted by the venue change and “there is absolutely no showing whatever to the contrary,” a denial of the motion to change venue is an abuse of discretion, because there is no conflict of evidence to sustain the decision of the trial court. (*Pearson, supra*, 199 Cal.App.2d at p. 78; *Rycz, supra*, 81 Cal.App.5th at p. 837.) However, a motion to transfer venue based on witness convenience cannot be made before an answer is filed. (*Buran Equipment Co. v. Superior Court* (1987) 190 Cal.App.3d 1662, 1665 (*Buran*).)

Both parties attested that their witnesses would be inconvenienced, Plaintiff if the case was transferred to Orange County and Defendant if the case were to remain in San Bernardino County. Defendant raises for the first time in his reply, arguments that refer to the related case. Plaintiff’s objection to these new argument is well taken. Fairness militates against considering such argument because Plaintiff has not had an opportunity to address the argument. (*Golden Door Properties, LLC v. City of San Diego* (2020) 50 Cal.App.5th 467, 559.) As such the court will not consider these new arguments.

Plaintiff is correct that Defendant’s lack of an answer on file in this matter is a procedural bar for the Court to consider its motion. (*Buran, supra*, 190 Cal.App.3d at p. 1665.) Even if Defendant had filed an answer, both parties conceded that this action’s current venue is proper. Therefore, any transfer would be discretionary. (See *Rycz, supra*, 81 Cal.App.5th at p. 837.) Considering the motion on its merits, there are sufficient facts to deny the motion on its merits as well.

RULING

1. Defendant’s motion to change venue is DENIED.
2. Plaintiff’s request for sanctions is DENIED. Section 396b does not apply to a motion brought under Section 397.
3. Movant to give Notice.